

Sandeep Kumar Prajapati v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 November 2019 · Writ-C No. 38454 of 2019 · Writ-C No. 38454 of 2019 · **Writ disposed of; petitioner relegated to Clause 6.5; coercive action stayed 40 days.**

HEADNOTE

A writ seeking mandamus to issue a correct electricity bill, or to decide a pending billing application, is not entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy for a dispute as to bill correctness. The consumer may approach the appropriate authority under that clause; the authority is to decide by a speaking order after hearing. Coercive action was stayed for 40 days.

FACTUAL SUMMARY

Sandeep Kumar Prajapati approached the Allahabad High Court seeking a mandamus to respondent no. 3 to issue a correct electricity bill so that he could deposit it with the department, and a further mandamus to decide his pending application dated 20 October 2019. He disputed the correctness of the bill raised against him. The Court heard counsel for the petitioner and the Electricity Department and perused the record.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness-statutory-remedy

HOLDING

A writ petition seeking a mandamus to issue a correct electricity bill, or to decide a pending application objecting to that bill, is not entertainable when Clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes a statutory remedy for a dispute as to bill correctness. The consumer may approach the appropriate authority under that clause, which is to consider and decide the application in accordance with law by a speaking order after opportunity of hearing. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ seeking mandamus to issue a correct electricity bill, or to decide a pending billing application, is not entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy for a dispute as to bill correctness.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL RAISED AGAINST THE PETITIONER

left to the statutory authority under Clause 6.5 ¶ 1